

2ND SCH.
—cont.

- (d) the amount of any balance of revenue over expenditure remaining at the end of the last preceding accounting period; and
- (e) any other revenue attributable to the period.

3. There shall be shown the expenditure upon allowances and gratuities attributable to service before the first day of June, nineteen hundred and twenty-two, separately from expenditure upon allowances, gratuities, and the return of contributions attributable to service since that date.

CHAPTER 60.

An Act to provide for the regulation of the manufacture, sale, and importation of vaccines, sera, and other therapeutic substances.

[7th August 1925.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Therapeutic
substances
to which
Act applies.

1. This Act applies to the therapeutic substances specified in the Schedule to this Act and any other therapeutic substances which may from time to time be added to that Schedule by regulations made under this Act as being substances the purity or potency of which cannot be adequately tested by chemical means.

Restrictions
on manu-
facture of
therapeutic
substances.

2.—(1) No person shall manufacture for sale any therapeutic substance to which this Act applies unless he holds a licence for the purpose from the licensing authority, or elsewhere than on the premises in respect of which such a licence is in force.

(2) A licence under this section shall continue in force for such period as may be prescribed, but may from time to time be renewed for a like period, and may extend to all the therapeutic substances to which this Act applies, or to such one or more of them as may be specified in the licence, and shall be issued subject to such conditions as may be prescribed.

(3) An applicant for a licence or the renewal of a licence must satisfy the licensing authority that the conditions under which the therapeutic substances are to be manufactured by him and the premises in which they are to be manufactured are such as to comply with any regulations made under this Act, and an applicant who so satisfies the licensing authority shall be entitled to the grant or renewal of the licence.

(4) The licensing authority may revoke a licence or suspend it for such period as he thinks fit if in his opinion the licensee has failed to comply with the conditions subject to which the licence was issued or with the regulations made under this Act as to the prescribed standards of strength, quality and purity, and such revocation or suspension may apply to all the therapeutic substances to which the licence applies or to some one or more of them:

Provided that a person who is aggrieved by the revocation or suspension of his licence may, subject to rules of court, appeal to the court, whose decision shall be final.

(5) Nothing in this section shall apply to the preparation by a registered medical practitioner for any of his own patients or for and at the request of another such practitioner of a therapeutic substance to which this Act applies, if it is specially prepared with reference to the condition, and for the use, of an individual patient.

3.—(1) It shall not be lawful to import into Great Britain or Northern Ireland any therapeutic substance to which this Act applies unless the substance—

Restrictions
on importa-
tion of
therapeutic
substances.

(a) is proved to the satisfaction of the licensing authority to comply with the standard of strength, quality and purity prescribed in the case of that substance, if the substance is one the manufacture of which is carried on in Great Britain or Northern Ireland, or, if such manufacture is not so carried on, with such standards (if any) of strength, quality and purity, as may be prescribed for that substance, or, if no such standards are so prescribed, with such standards of quality and purity as are prescribed in the case of therapeutic substances of a similar class,

the manufacture of which is carried on in Great Britain or Northern Ireland, and is consigned to a person licensed by the licensing authority to import it; or

(b) is consigned to a person engaged in scientific research holding a special licence to import it for the purpose of such research issued by the licensing authority.

(2) The issue of any licence under this section shall be subject to such conditions, including conditions as to suspension and revocation, as may be prescribed.

(3) Therapeutic substances prohibited to be imported by this section shall be deemed to be included among the goods enumerated and described in the table of prohibitions and restrictions inwards contained in section 39 & 40 Vict. c. 36. forty-two of the Customs Consolidation Act, 1876, and the provisions of that Act and any Act amending or extending that Act shall apply accordingly.

Joint
advisory
committees.

4.—(1) For the purpose of framing regulations under this Act and for securing uniformity of standards, there shall be established a joint committee consisting of the Minister of Health, who shall be chairman, the Secretary for Scotland, and the Minister of Home Affairs for Northern Ireland :

Provided that each member of the joint committee may appoint a deputy to act for him at meetings of the committee at which he is unable to be present.

(2) For the purpose of assisting the joint committee in the framing of regulations under this Act, there shall be appointed an advisory committee consisting of one member appointed by the Minister of Health, who shall be chairman, one member appointed by the Scottish Board of Health, one member appointed by the Minister of Home Affairs for Northern Ireland, one member appointed by the Medical Research Council, one member appointed by the General Medical Council, one member appointed by the British Medical Association, one member appointed by the Council of the Pharmaceutical Society of Great Britain, and one member appointed by the Council of the Institute of Chemistry of Great Britain and Ireland.

5.—(1) The joint committee, after consultation with the advisory committee, may make regulations for the following purposes:—

Power to
make regu-
lations.

- (a) for prescribing the standard of strength, quality and purity of any therapeutic substance to which this Act applies:
- (b) for prescribing the tests to be used for determining whether the standard prescribed as aforesaid has been attained:
- (c) for prescribing units of standardisation:
- (d) for adding to the Schedule to this Act any therapeutic substance the purity or potency of which cannot be adequately tested by chemical means:
- (e) for prescribing the form of licences under this Act and of applications therefor, and of notices to be given in connection therewith:
- (f) for prescribing the conditions subject to which licences may be issued, including in the case of a licence to manufacture conditions that the licensee shall allow any inspector authorised by the licensing authority in that behalf to enter any premises where the manufacture is carried on, and to inspect the premises and plant and the process of manufacture and the means employed for standardising and testing the manufactured substance and to take samples thereof:
- (g) for excluding from the operation of this Act, or of any of the provisions thereof, any therapeutic substance intended to be used solely for veterinary purposes:
- (h) for prescribing any other matter which under this Act is to be prescribed.

(2) Regulations so made may also as respects any such therapeutic substance to which this Act applies as may be specified in the regulations contain provisions:—

- (a) requiring that, if advertised or sold as a proprietary medicine or contained in such medicine, such accepted scientific name, or name descriptive of the true nature and origin

of the substance, as may be prescribed shall appear on the label :

- (b) requiring that the date of the manufacture shall be stated in the prescribed manner on all vessels or other packages in which the substance is sold or offered for sale, and prohibiting the sale of the substance after the expiration of the prescribed period from the date of manufacture :
- (c) prohibiting the sale or the offering for sale of the substance otherwise than in a vessel or other container of such character as may be prescribed, and requiring that the prescribed label or other description shall be affixed to such vessel or container.

(3) All regulations made under this section shall be laid before both Houses of Parliament as soon as may be after they are made :

Provided that, if an Address is presented to His Majesty by either House of Parliament within twenty-one days after such regulations have been laid, being days on which that House has sat, praying that such regulations be annulled, they shall henceforth be void, without prejudice to the validity of anything previously done under the regulations or to the making of new regulations.

Offences.

6. If any person—

- (a) being a person who is required by this Act to be licensed in that behalf manufactures for sale any therapeutic substance to which this Act applies without a licence for the purpose, or elsewhere than on premises in respect of which a licence is in force :
- (b) contravenes or fails to comply with any condition subject to which a licence under this Act is issued :
- (c) sells or has in his possession for sale any therapeutic substance to which this Act applies knowing it to have been manufactured or imported in contravention of this Act or the regulations made thereunder :
- (d) contravenes or fails to comply with the provisions of any regulation made under this Act ;

he shall be guilty of an offence against this Act, and liable on summary conviction to a fine not exceeding one hundred pounds, or in the case of a second or subsequent conviction, to such a fine or to imprisonment with or without hard labour for a time not exceeding three months, and in either case to forfeit any goods in connection with which the offence was committed, and without prejudice, if the offender is the holder of a licence, to the power of the licensing authority to revoke or suspend the licence.

7.—(1) The following authorities shall be the licensing authorities for the purposes of this Act:— Interpreta-
tion.

(a) as respects England and Wales, the Minister of Health:

(b) as respects Scotland, the Scottish Board of Health:

(c) as respects Northern Ireland, the Minister of Home Affairs for Northern Ireland.

(2) For the purposes of this Act, the expression “court” means as respects England and Wales the High Court, as respects Scotland the Court of Session, and as respects Northern Ireland the High Court of Justice for Northern Ireland.

8.—(1) This Act may be cited as the Therapeutic Substances Act, 1925. Short title,
commence-
ment and
extent.

(2) This Act shall come into operation on such day not being earlier than one year nor later than two years after the passing thereof as may be fixed by His Majesty by Order in Council.

(3) This Act shall extend to Great Britain and Northern Ireland, but in relation to Northern Ireland shall, as respects matters within the powers of the Parliament of Northern Ireland, be subject to repeal or alteration by that Parliament as if it had been an Act passed before the appointed day within the meaning of the Government of Ireland Act, 1920.

10 & 11 Geo.
5. c. 67.

Sections 1
and 5.

SCHEDULE.

THERAPEUTIC SUBSTANCES TO WHICH THIS ACT APPLIES.

1. The substances commonly known as vaccines, sera, toxins, antitoxins and antigens.

2. The substance commonly known as salvarsan (Dioxy-diamino-arseno-benzol-di-hydrochloride) and analogous substances used for the specific treatment of infective disease.

3. Preparations of the specific antidiabetic principle of the pancreas, known as insulin.

4. Preparations of the posterior lobe of the pituitary body intended for use by injection.

CHAPTER 61.

An Act to facilitate the acquisition and maintenance of allotments, and to make further provision for the security of tenure of tenants of allotments. [7th August 1925.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Interpreta-
tion.

1. In this Act, unless the context otherwise requires,—

12 & 13
Geo. 5. c. 51.

“Allotment” means an allotment garden as defined by the Allotments Act, 1922, or any parcel of land not more than five acres in extent cultivated or intended to be cultivated as a garden or farm, or partly as a garden and partly as a farm;

“Commissioners” means the Public Works Loans Commissioners;

“The Act of 1922” means the Allotments Act, 1922.

2.—(1) Subject to such conditions and during such period as the Treasury may prescribe, and up to an aggregate amount approved by the Treasury, the Commissioners may, in manner provided by the Public Works Loans Act, 1875, as amended by this section, lend to any approved society money required for the purpose of purchasing land to be used as allotments.

Loans by
Commis-
sioners to
allotment
societies.
38 & 39 Vict.
c. 89.

(2) Any loan made under the powers of this section shall be secured by mortgage or charge on the lands in respect of which the loan is made, and such other land or property (if any) as the society is willing to mortgage or charge with repayment of the loan.

(3) Lands purchased by an approved society, and in respect of which a loan is made by the Commissioners, shall thereafter, while owned by such society, be let to members of such society or others and used as allotments, provided that it shall be competent for the society to dispose of the land or any part thereof if so authorised by a resolution passed by two-thirds at least of the members present at a meeting of the society convened for this purpose by a notice stating the proposal for sale, and if the consent of the Minister of Agriculture and Fisheries is obtained:

Provided also that, if at the time of such sale any part of a loan made under this section remains unpaid, the sale shall also be subject to the consent of the Commissioners.

Nothing in this subsection shall affect or apply to the use or disposal of any such land by the Commissioners or any persons deriving title under them in such manner as they may think fit.

(4) The Commissioners shall not under this section advance a sum in excess of two-thirds of the value, as ascertained to the satisfaction of the Commissioners, of the land proposed to be acquired or make any advance to a society except where it is shown to the satisfaction of the Commissioners that an amount equal to one-third of the value of the land to be purchased has been provided from other sources in a manner approved by the Commissioners and has been, or will be, expended in part payment of the purchase price of the land to be mortgaged to the Commissioners.

(5) The rate of interest payable on the mortgage shall be such rate as the Treasury shall from time to time prescribe.

(6) The amount secured by the mortgage or charge, with interest thereon, shall be repayable within a period not exceeding thirty-five years by equal yearly or half-yearly instalments of principal and interest combined.

(7) The land comprised in the mortgage or charge must be freehold or copyhold land free from any mortgage or other charge affecting it in priority to the mortgage or charge of the Commissioners.

(8) For the purposes of this Act "approved society" means—

(a) a society registered under the Industrial and Provident Societies Acts, 1893 to 1923, or the Friendly Societies Acts, 1896 to 1924, one of whose objects is the provision of allotments, and which, by its constitution or otherwise, is restricted in relation to the rate of interest on share and loan capital and the distribution of profits amongst its members so as to comply with regulations made in that behalf by the Treasury; or

(b) a company registered under the Companies Acts, 1908 to 1918, which does not trade for profit, or whose constitution forbids the issue of any share or loan capital with interest or dividend exceeding the rate for the time being prescribed by the Treasury.

(9) The powers conferred by this section on the Commissioners are in addition to and not in derogation of any powers conferred on them by any other enactment.

Provision
for
allotments
in town-
planning
schemes.
15 Geo. 5.
c. 16.

3.—(1) Every local authority or joint committee of local authorities preparing a town-planning scheme in pursuance of the Town Planning Act, 1925, shall, in preparing such scheme, consider what provision ought to be included therein for the reservation of land for allotments.

Before determining whether provision shall be included as aforesaid, the local authority or joint committee shall consult the council of any borough or urban

district any part of whose district is within the area of the proposed scheme, and consider any recommendations which the council of the borough or urban district make. •

Every local authority or joint committee submitting a town-planning scheme to the Minister of Health for his approval shall furnish therewith a statement under the hand of their clerk or other competent officer certifying that the requirements of this subsection have been complied with.

(2) The Minister of Health shall notify the Minister of Agriculture and Fisheries of any resolution passed by a local authority or joint committee deciding to prepare a town-planning scheme in pursuance of the Town Planning Act, 1925.

(3) The council of every borough or urban district, any part of whose district is within the area of a town-planning scheme, shall take into consideration from time to time, but at least once in every year, the question whether any and, if so, what lands within the area of the scheme are needed for allotments, whether reserved for the purpose or not, and ought to be acquired under and in accordance with the provisions of the Allotments Acts, 1908 to 1922, as amended by this Act.

(4) In the case of any borough or urban district for which an allotments committee is appointed under the Act of 1922, as amended by this Act, the council of the borough or urban district shall refer to their allotment committee any matter which they are required to consider under subsections (1) and (3) of this section, or which is referred to them for their consideration by any other local authority under subsection (1) of this section, and shall consider the report of the allotments committee thereon.

4. Notwithstanding the provisions of section sixteen of the Act of 1922, the council of any borough or urban district may take proceedings under the provisions of the Allotments Acts, 1908 to 1922, relating to allotments if, in the opinion of the council, the expenses referred to in such section may reasonably be expected, after the proceedings are taken, to exceed the receipts of the council under those provisions by no greater amount than would be produced by a rate of one penny in the pound.

Limit of
expenditure
on provision
of allot-
ments.

Acquisition
of land for
future allot-
ments.

5. The council of a borough or urban district may acquire land for allotments, notwithstanding that the land or any part of it cannot immediately be let in allotments, provided that the Minister of Health is satisfied, after consultation with the Minister of Agriculture and Fisheries, that there is a reasonable expectation that the land will eventually be required for allotments.

Amendment
of section
ten (3) of
Act of 1922.

6. Section ten of the Act of 1922 is hereby amended by the substitution for paragraph (b) of subsection (3) of the following paragraph:—

(b) by not less than three months' notice in writing given by the owner to the council in any case where the land is required for any purpose other than the use of the land for agriculture, sport, or recreation, and by not less than six months' notice in writing so given and expiring on or before the sixth day of April, or on or after the twenty-ninth day of September, where the land is required for use for sport or recreation.

Amendment
of section
ten (4) of
Act of 1922.

7. The right of a tenant to claim compensation under subsection (4) of section ten of the Act of 1922 shall be exercisable notwithstanding that it is otherwise agreed in the contract of tenancy in any case where the rent payable by the tenant under his contract of tenancy for the land exceeds threepence per pole, unless, in the case of a tenancy existing at the passing of this Act, the council within three months after the passing of this Act gives notice in writing to the tenant that the rent of the land is as from the last preceding date for payment of rent reduced to a rent of threepence per pole or less.

Sale, &c., of
land used as
allotments.

8. Where a local authority has purchased land for use as allotments the local authority shall not sell, appropriate, use, or dispose of the land for any purpose other than use for allotments without the consent of the Minister of Agriculture and Fisheries after consultation with the Minister of Health, and such consent shall not be given unless the Minister is satisfied that adequate provision will be made for allotment holders displaced by the action of the local authority or that such provision is unnecessary or not reasonably practicable, and where such consent is obtained the sanction of the county council under section thirty-two of the Small Holdings and Allotments Act, 1908, shall not be required.

9. Section eleven of the Act of 1922 shall be read as if the period of twenty-one days were substituted therein for the period of ten days as the period within which a notice may be served on the person requiring possession. Amendment of s. 11 of the Act of 1922.

10. Where after the date of this Act coming into operation land which is not used for allotments commences to be so used, the gross value, or the gross estimated rental, for the purposes of any enactment relating to rating, at which the land is assessed immediately before such user shall not be increased during the first three years of such user, and where the land so used was immediately before such user included with other land in one assessment in the valuation list in force, the gross value or gross estimated rental of the land included in that assessment shall for the purposes of this section be apportioned according to acreage as between the land used for allotments and the other land : Rating of new allotments.

Provided that, if on the application of any person interested, or without any such application, it appears to the assessment committee that apportionment according to acreage would work an injustice, the gross value or gross estimated rental shall be apportioned in such manner as the assessment committee may determine.

11. The provisions of subsection (1) of section seventeen of the Act of 1922, relating to the assessment of a council to rates shall apply to an approved society providing land for allotments in the same manner as it applies to a council, and subsection (2) of that section is hereby repealed. Amendment of section seventeen of the Act of 1922.

12.—(1) Subsection (1) of section fourteen of the Act of 1922 shall apply in any case where the total number of allotments provided by the council of a borough or urban district exceeds the number of four hundred, notwithstanding that the population of the borough or urban district is less than ten thousand. Allotment committees of urban authorities.

(2) In section fourteen subsection (2) of the Act of 1922 the words “ be not more than one-third of the total “ number of the members of the committee or be less “ than two or one-fifth of such total number whichever “ be the larger number ” are hereby repealed, and the following words shall be and are hereby substituted therefor “ be as near as may be one-third of the total “ number of the members of the committee, and in no

“ case shall the number of representative members be
“ less than two.”

(3) This section shall not come into operation until the first day of November, nineteen hundred and twenty-five.

Records of
purchase
price, rent,
and rateable
value of
land
acquired.

13. Where land is purchased or leased by a local authority under the Allotments Acts, 1908 to 1922, or this Act, the local authority shall record the purchase price or rent agreed to be paid for the land, and the gross value or gross estimated rental at which the land is assessed for rating purposes at the date of its acquisition, where it is separately so assessed, or the apportioned part thereof as estimated by the local authority, where it is not so separately so assessed, and the particulars so recorded shall be included by each local authority in their annual report to the Minister of Agriculture and Fisheries under section fifty-nine of the Small Holdings and Allotments Act, 1908.

Short title.

14.—(1) This Act may be cited as the Allotments Act, 1925, and the Allotments Acts, 1908 to 1922, and this Act may be cited together as the Allotments Acts, 1908 to 1925.

(2) This Act shall not apply to Scotland or Northern Ireland.

CHAPTER 62.

An Act to grant money for the purpose of certain Local Loans out of the Local Loans Fund, and for other purposes relating to Local Loans.

[7th August 1925.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Appoint-
ment of
Public
Works
Loan Com-
missioners

1. Whereas the term of office of persons who are, at the passing of this Act, Public Works Loan Commissioners under the Public Works Loans Act, 1875, will expire at the end of a period of five years from the first day of April, nineteen hundred and twenty-one, and it